

Justice Crawley then being there giving rules and orders) and said, I accuse Mr. Justice Hutton of high treason, for which he was committed to the custody of the warden of the Fleet by Justice Crawley; and after by the direction of the King, he was indicted in the Kings Bench, and convicted and fined five thousand pounds to the King: and Justice Hutton preferred his bill against him there, and recovered ten thousand pound damages.

LORD DIGBIES CASE.

Trial of a peer how, v. Devant, 116.

Memorand. That in the Parliament holden primo Car. It was resolved by the Judges upon conference concerning the Lord, Digby, that when any peer shall be proceeded against for treason, that ought to be by indictment, and that being done, then the King is to appoint a peer to be steward for the time, and then to proceed to arraign him, or otherwise to transmit this judgment by certiorari, to the Parliament, and there to proceed, vide 10 E. 4, 6, 1 H. 4, 1, vide Coke Lit. fol. 261 b. Or otherwise to prefer a bill in the Parliament, which ought to be passed by both houses, and then it is attainder by Parliament, and so it was done, 5 R. 2, 54.

But in this case, it being that part of the treason objected against him, was supposed to be done out le mere, and made treason by the Act of 3 Jac. cap. 4, that cannot be tried but by indictment, to be taken before the Justices of Assise, and Gaol-Delivery, where the party was taken, or before the Justices of the Kings Bench, any law, custome, statute, or usage to the contrary notwithstanding; and so it cannot be tried by the statute of 35 H. 8, cap. 2, in what place or shire that the Kings Bench shall be, for this statute had for this treason prescribed a special form of trial, and the place where he shall be taken shall be expounded, the place where he is imprisoned, as upon the Statute of Soldiers: and he which is charged to have two wives living, shall be tried in the place where he is taken, which is the place where he is imprisoned, vide 2 Inst. 49.

[132] TRIN. 12 CAR.

Queries concerning aliens.

Quæries upon the statutes of 1 R. 2, cap. 9, 1 H. 7, cap. 2, 14 H. 8, cap. 2, the decrees in the Star-Chamber made 20 H. 8, and confirmed 21 H. 8, cap. 16, 22 H. 8, cap. 8, 32 H. 8, 16, and other statutes concerning aliens, and the statute of 5 Eliz. cap. 4.

1. Whether the statute of 5 Eliz. cap. 4, doth repeal the former statutes concerning aliens, taking apprentices, journey-men, and servants.

2. Whether aliens made denizens, may use any handycraft within the realm, otherwise then as servants to the Kings subjects.

Memorand. That on the seventh day of July, we met at Serjeants Inne in Fleet-street (Mr. Attorney General being there) and we debated the matter, and upon perusal of the statute of 1 R. 3, cap. 9, and the other statutes: and upon some mis-recital of the Statute 1 R. 3, by the statute 32 H. 8, cap. 16. And upon differences of the printed statute from the Parliament roll, as was supposed, upon shewing of an old book of statutes, which was in French, and brought by my brother Crook; and upon the intricacy of the statute, we could not resolve on the sudden, upon these questions at this time, nor unless the Parliament roll might be seen.

But upon perusal of the statute of 5 Eliz. cap. 4, we all resolved and agreed.

That all aliens and denizens are restrained by the statute of 5 Eliz. cap. 4. That they may not use any handycraft mentioned in the said statute, unless they have served seven years as apprentices within this realm, according to the provision of this statute: this was set down in writing by Sir John Banks His Majesties Attorney General present: Sir John Bramston Chief Justice of England, Sir John Finch Chief Justice of the Common Bench, Sir Humphrey Davenport Chief Baron, Baron Denham, Justice Hutton, Justice Crook, Baron Trevor, Justice Crawley, and Baron Weston, the other Judges being absent, viz. Jones and Vernon.